

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, May 21, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26630 against PO Marcelo Espinoza, Tax Registry No. 962388. The case was conferenced on May 20, 2025, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of a Command Discipline B and forfeiture of 10 vacation days for DADS No. 2022-26630, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for plea purposes.

Andre D. Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board

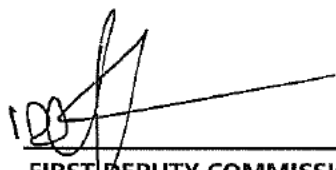
**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-031896
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, ESPINOZA	FIRST MARCELO	M.I.	COMMAND 028
SHIELD NO. 20073	TAX REGISTRY NO. 962388	SOCIAL SECURITY NO.	DATE APPOINTED 10/11/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer MARCELO ESPINOZA, on or about February 7, 2021, at approximately 1815, while assigned to 028 PCT and on duty, in the vicinity of the 28th Precinct stationhouse, New York County, wrongfully used force, in that he dropped § 87(2)(b) on his head without police necessity.	DISMISSED	B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

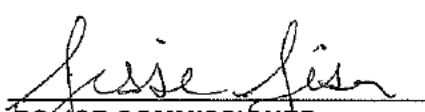


FIRST DEPUTY COMMISSIONER

12/10/25

DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)



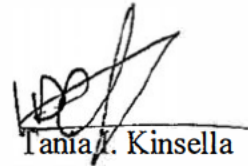
POLICE COMMISSIONER

12/16/25

DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, December 9, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. C-031896 (CCRB Case No. 202100898) against Police Officer Marcelo Espinoza, Tax No. 962388, with the recommendation that he receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this matter and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

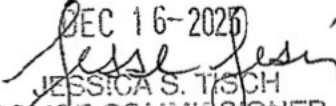


Tania L. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

DEC 16-2025

JESSICA S. TISCH
POLICE COMMISSIONER